

DEPARTMENT OF VETERANS AFFAIRS

Justification and Approval

For

Exception to Fair Opportunity Memo

Acquisition Plan Action ID: 36C244-26-AP-1448

1. **Contracting Activity:** Department of Veterans Affairs, NCO4 Contracting Office 04, located at 1010 Delafield Rd., Pittsburgh, PA, 15215, in support of VISN 04 VA Health Care System at the Lebanon VAMC Station 595, 1700 South Lincoln Ave, Lebanon PA 17042. Justification for Exception to Fair Opportunity

PR/2237: 595-26-019-0027

Total Estimated Amount: [REDACTED]

2. **Description of Action:**

The proposed sole source delivery order against the NASA Solutions for Enterprise-Wide Procurement (SEWP) Government-Wide Acquisition Contract (GWAC) NNG15SD19B is for a one base year plus two option years firm-fixed-price order for the procurement of brand name MedRec software which includes license renewal for both on-call management and advanced scheduling. The vendor is Alvarez, LLC, 8251 Greensboro Dr., Tysons Corner, VA, 22102-4900, a SDVOSB, and provides software and support for the OEM, Avicenna Medical Systems, Inc.

3. **Description of Supplies or Services:**

The Lebanon VA Medical Center (LVAMC) requires the Avicenna Medical Systems brand name enhanced software maintenance and software support for the Medication Reconciliation Tool. The period of performance shall include one 12-month base period and two each 12-month option periods. The estimated value of the proposed action is [REDACTED]

4. **Statutory Authority:** The statutory authority permitting an exception to fair opportunity is Section 41 U.S.C. 4106(c) as implemented by the Revolutionary Federal Acquisition Regulation Overhaul (RFO) 16.507-6(b):

(X) FAR 16.507-6(b)(2): Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

5. **Rationale Supporting Use of Authority Cited Above:**

This is a brand name justification in support of RFO 11.204, Items Peculiar to One Manufacturer.

Attachment 1: Request for Exception to Fair Opportunity Memo

Based on extensive market research, as described in paragraph eight of this document, it was determined that no competition is viable among authorized providers for this brand name item. The Avicenna Medication Reconciliation (MedRec) Tool is the only product capable of maintaining full interoperability with the Department of Veterans Affairs' existing VistA/CPRS platform. This interoperability is essential to support VA-specific clinical workflows and to enable the bidirectional exchange of medication data required for accurate medication reconciliation. The ability to reliably pull and push data between VistA/CPRS and the MedRec Tool is critical to ensuring patient safety, maintaining the quality of care provided to Veterans, and sustaining clinical productivity. No other commercially available solution has demonstrated the capability to meet these VA-specific technical and workflow requirements.

6. Efforts to Obtain Competition:

One Small Businesses/SDVOSB (Alvarez, LLC) and one Large Business (Avicenna, the software owner) are able to provide requirement. Alvarez, LLC is a SDVOSB with a NASA-SEWP Contract (NNG15SD19B) and able to provide Avicenna Medical Systems brand enhanced software maintenance and software support for the Medication Reconciliation Tool. There is no competition anticipated for this acquisition. In accordance with RFO 16.507-6(f), this justification and award notice will be posted to the GPE for 30 days.

7. Actions to Increase Competition:

The Government will conduct strategic market research periodically to assess alternative software viability, as well as account for any changes to the VAMC's network that may enable other software solutions.

8. Market Research:

The Government's technical experts conducted market research by reviewing other similar software, however no other software was identified that could fulfill this Government need. One Small Businesses/SDVOSB (Alvarez, LLC) and one Large Business (Avicenna, the software owner) are able to provide requirement. Alvarez, LLC is a SDVOSB with a NASA-SEWP Contract (NNG15SD19B) and able to provide Avicenna Medical Systems brand enhanced software maintenance and software support for the Medication Reconciliation Tool.

9. Other Facts: The Government would face significant harm if required to transition to any alternative software, including substantial administrative burden, unpredictable and likely higher costs, and extensive training demands. Such a transition would create operational disruptions, reduce efficiency, and pose a serious risk of delayed medications, appointments, and overall continuity of care for Veterans.

10. Determination that Anticipated Cost is Fair and Reasonable:

The Government intends to place the order through NASA SEWP V. SEWP V is a pre-competed, multiple-award contract vehicle that provides the VA with access to a wide range of products and services from vetted vendors. Pricing under SEWP V has been established through competitive procedures and is subject to ongoing review by NASA to ensure compliance with Federal Acquisition Regulation (FAR) requirements. As a result, all catalog prices available through SEWP V are considered fair and reasonable, eliminating the need for additional price analysis at the order level. Utilizing this GWAC streamlines the acquisition process, reduces administrative burden, and ensures adherence to statutory and regulatory requirements for fair pricing.

11. Contracting Officer's Certification (required): I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

AMANDA SAUNDERS

Amanda Saunders
Contracting Officer
NCO 04 Commodities 2

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